

Stereo.HCJDA 38.
Judgment Sheet
LAHORE HIGH COURT
RAWALPINDI BENCH RAWALPINDI
JUDICIAL DEPARTMENT

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CIVIL REVISION NO.124-D of 2022

BOARD OF INTERMEDIATE AND SECONDARY EDUCATION
RAWALPINDI Through its Chairman, Morgah Road, Rawalpindi

Versus

SADIA IQBAL and another

JUDGMENT

Date of hearing:	<u>26.02.2025</u>
Petitioner by:	Mr. Haroon Irshad Janjua, Advocate.
Respondent No.1 by:	Ms. Nosheen Ashraf, Advocate.
Respondent No.2 by:	Malik Muhammad Khalid, Law Officer, National Database and Registration Authority (NADRA).

MIRZA VIQAS RAUF, J. This petition alongwith connected petitions, find mentioned in the attached list (Annex-A), originates from the suits for declaration and injunction instituted by the students (hereinafter referred to as “**students**”), who studied in various educational institutions controlled by the Board of Intermediate and Secondary Education, Rawalpindi (hereinafter referred to as “**Board**”). In all these suits, **students** are either seeking correction of their date of birth or change of name. Needless to mention that most of the revision petitions have been filed by the **Board** challenging the *vires* of decrees passed in favour of **students** whereas some are on behalf of **students**, who failed to get their suits decreed. The reproduction of facts of each suit is not necessary, as the core issue raised before this Court by the **Board** is with regard to

the jurisdiction of civil court to try such suits. It is an admitted position that in some of the suits, issue relating to jurisdiction was framed whereas in other cases it was not done so. In most of the suits, **students** remained successful in persuading the civil court to pass decrees in their favour but some **students** remained unlucky and they were non-suited on account of bar of jurisdiction. Thus, without delving into rigmarole of facts, it would be apt to ponder upon the moot point raised by the **Board** that civil court lacks jurisdiction to try such suits.

2. Learned counsel representing the **Board** submitted that in terms of Section 29 of the Punjab Boards of Intermediate and Secondary Education Act, 1976, jurisdiction of civil court is clearly ousted. He added that even otherwise, there are rules and regulations framed under the Act *ibid* dealing with the change of date of birth as well as name of the **students** and as such institution of suits by them before the civil court for the said purpose is barred. In order to supplement his contentions, learned counsel placed reliance on GENERAL MANAGER, SNGPL, PESHAWAR versus QAMAR ZAMAN and others (2021 SCMR 2094) and NESTLE PAK LIMITED, LAHORE through Authorized Signatory and another versus SHEHRYAR KURESHI and 3 others (2024 CLD 502).

3. On the contrary, it is argued on behalf of **students** that in terms of Section 9 of the Code of Civil Procedure (V of 1908), civil court has plenary jurisdiction to try such suits and bar in terms of Section 29 of the Punjab Boards of Intermediate and Secondary Education Act, 1976 is of no avail. Reliance to this effect is placed upon BOARD OF INTERMEDIATE AND SECONDARY EDUCATION and others versus KHALIL AHMAD and others (2008 SCMR 116), BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, LAHORE versus USMAN SHAUKAT ALI KHAN (2008 SCMR 1047), BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, LAHORE and another versus HASSAN SULEMAN (2000 SCMR 1415) and BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, FAISALABAD versus MUHAMMAD WALEED (2021 MLD 123).

4. Heard. Record perused.

5. Before dilating upon the moot point, canvassed before this Court, it would be apposite to first go through the legislative background. Section 9 of the Code of Civil Procedure (V of 1908), (hereinafter referred to “**C.P.C.**”), bestows jurisdiction upon the civil court to try all suits of a civil nature except the suits of which their cognizance is either expressly or impliedly barred. Civil courts are thus courts of ultimate jurisdiction. In other words, wherever there is question of enforcement of civil rights, a civil court has jurisdiction to entertain and try the suit independently of any statute unless its cognizance is either expressly or impliedly barred. It is trite law that even if there is any bar in the statute ousting the jurisdiction of civil court, it cannot operate as absolute. As already observed that by virtue of Section 9 of the **C.P.C.**, the civil courts are granted general jurisdiction to try all suits of civil nature. Civil courts are courts of ultimate jurisdiction and unless jurisdiction is either expressly or impliedly barred, the final decision with regard to a civil right, duty or obligation, shall be that of the civil courts, where allegation of *mala fide* action has been made in the plaint, the civil court despite the bar placed on the relevant statute can examine acts on account of being tainted with *mala fide*, *coram non judice* or void. The civil court, however, cannot jump into the matter, if it is either expressly or impliedly barred unless remedy provided in the relevant statute is exhausted.

6. In the above backdrop, it is noticed that in order to reconstitute and establish Boards of Intermediate and Secondary Education in the Punjab and to amend and consolidate the law relating thereto, the Punjab Boards of Intermediate and Secondary Education Act No.XIII of 1976 (hereinafter referred to as “**Act, 1976**”) was promulgated. Section 29 of the **Act, 1976** introduced the bar of suits, which reads as under:-

“(29) No act done, order made or proceeding taken by a Board in pursuance of the provisions of this Act shall be called in question in any Court.”

In furtherance to the above, the calendar of the Board of Intermediate and Secondary Education Rawalpindi Volume-I deals with Act and

Regulations whereas Volume II of the calendar prescribes the Rules. Chapter-III of Volume I *ibid* provides the general regulations and Regulation 5 deals with the matter relating to correction in date of birth of a candidate, which for ready reference, is reproduced below:-

“(5) The date of birth of candidate who has either applied for appearing in the Secondary School Certificate examination or has already passed the examination, may be corrected; provided that :

(1) The application is made within 2 years from the declaration of Result of Secondary School Examination on payment of Rs. 510/- or from 2 to 5 years on payment of 1010/- or from five to ten years on payment of Rs. 2010/- or after ten years on payment of Rs. 3010/- as a special fee;

Provided further that the fee once received shall not be refunded.

(2) The Board is satisfied after enquiry and inspection of school records pertaining to the first admission of a particular candidate in a recognized school that the mistake was due to a clerical error in transferring date of birth from one record, register or document to another register or document.

OR

If the entry of the date of birth on the first joining a recognized school is not available or is reported to be incorrect then the birth certificate containing all entries pertaining to his name in the Municipal birth Register be supplied; provided that the name of the candidate and the name of the father of the candidate are clearly mentioned in these entries.

(3) The school records are corrected in the same manner as the records in the office of the Board.

(4) Notwithstanding anything contained in this Regulation, the Chairman may accept a certificate of School duly attested by the foreign mission of Pakistan in a foreign country.”

Chapter-17 of Volume II of the calendar, on the other hand, provides the mode and manner of change in the name or surnames of registered students. For ready reference and convenience, same is reproduced below :-

CHAPTER-17 CHANGE IN THE NAME OR SURNAMES OF REGISTERED STUDENTS

1. An application for a change in name or surname of registered student for any subsequent public examination that a candidate wishes to take, may be entertained; provided that it is accompanied by:

- (i) An affidavit given before a 1st Class Magistrate or a Civil Judge or an Oath Commissioner to this effect.

- (ii) A cutting of advertisement announcing the intended change in at least one leading daily newspaper; and,
2. No application under Rule 1 shall be entertained unless the candidate applies to the Board on a prescribed form through the Head of the Institution in which he was last studying. In case of a private candidate, the application shall be submitted through the Head of a recognized Institution.
3. Change in name under Rule 2 shall be granted only if the Board is satisfied that all requirements have been fulfilled.
4. The original name shall invariably form a part of the name of the candidate and shall be shown as such in all records of the Board with the addition of the word 'alias' between the two names. No change shall, however, be made in the records pertaining to an examination taken before the change is sanctioned.
5. No change in any particular given or statement made in an admission form or any other form or document submitted by a candidate to the Board shall be allowed except as may be admissible under the Regulations or Rules.

N.B. Rates of fee for change in the name of a candidate (as well as correction in date of birth) shall be as under:

- | | |
|---|------------|
| (a) Within 2 years | Rs. 510/- |
| (b) After 2 years and within five years | Rs. 1010/- |
| (c) After 5 years and within ten years | Rs. 2010/- |
| (d) After 10 years or above | Rs. 3010/- |

B. CORRECTION IN FATHER'S NAME OF A CANDIDATE

6. The father's name of a candidate who has either applied for appearing in the Board's examination, or has already passed the examination may be corrected provided that:-

- (1) Application is submitted with full particulars and after depositing requisite fee.
- (2) The Board is satisfied after enquiry and inspection of the recognized school's record that the mistake was due to an error in transferring the father's name from one record register or document to the other at either stage i.e. Primary/ Middle/High School or wrong transfer of entries from first admission form in infant class to the Admission and Withdrawal Register of a School.
If the entry of father's name on first joining a recognized school is not available, or, is reported to be incorrect, then one birth certificate contained all entries pertaining to his name in the Municipal Birth Register be supplied, provided that the name of the candidate and his father are clearly mentioned in these entries.
- (3) The school records are corrected in the same manner as the records in the office of the Board.
- (4) Notwithstanding anything contained in this rule, the Chairman may accept a certificate of school duly attested by the Foreign Mission of Pakistan in a foreign country or the Chairman may waive the condition and allow the correction in father's name under Regulation III, 10 of the Board's Calender.
- (5) Provided further that:-

- i) No fee for duplicate certificate in lieu of correction in Father's name, date of birth, change in the name of candidate be charged.
 - ii) Fresh fee may be charged from those whose cases are rejected and reopened/ considered for one reason or the other.
 - iii) No fee of any kind in such cases be charged from those Non-Muslim who embrace Islam.
- (6) The Chairman may approve cases of correction in date of birth, correction in name or in father's name in anticipation of the approval of the Board.

NOTE: Fee deposited for correction/ change in name or date of birth etc, will not be refunded even if the application is not accepted.

7. After having a glimpse of legislative background, I would now like to advert to the case law cited by both the sides. First of all, I would take into consideration the precedents/case laws heavily relied upon by learned counsel representing the **students**. First of the series is the case of BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, LAHORE and another versus HASSAN SULEMAN supra, which is a leave refusing order and as such would not be having a binding effect. Same is the case with BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, LAHORE versus USMAN SHAUKAT ALI KHAN supra. Reference to this effect can be made to The COMMISSIONER INLAND REVENUE versus The SECRETARY REVENUE DIVISION and others (2020 SCMR 2055) and GHULAM QADIR and others versus Sh. ABDUL WADOOD and others (PLD 2016 Supreme Court 712).

8. In the case of BOARD OF INTERMEDIATE AND SECONDARY EDUCATION and others versus KHALIL AHMAD and others supra, the question of jurisdiction in terms of Section 29 of the **Act, 1976** was raised by the **Board** for the first time before the Supreme Court of Pakistan and in that backdrop, it was repelled by observing “*Indeed the appellants did not either expressly or by necessary implication objected to the maintainability of the suit of the respondent on account of ouster of jurisdiction of the Civil Court under sections 29 and 30 of the Punjab Board of Intermediate and Secondary Education Act, 1976. Obviously no issue was framed on the point. We also do not find any ground on the question either in the memorandum of appeal before the Appellate Court or in the petition filed before the High Court. The question of ouster of jurisdiction being a mixed question of facts and law in the present case as the*

provision of sections 29 and 31 of the Punjab Board of Intermediate and Secondary Education Act, 1976 would reveal, the objection to the jurisdiction of the Civil Court ought to have been raised before the trial Court. Sections 29 and 31 of the Punjab Board of Intermediate and Secondary Education Act, 1976 runs as under:--

"29. Bar of suit.--- No act done, order made or proceeding taken by a Board in pursuance of the provisions of this Act shall be called in question in any Court.

31. Protection of acts and order under the Act. No suit for damages or other legal proceedings shall be instituted against Government, the Controlling Authority, a Board, a Committee, a Member or a Committee or an Officer or employee of a Board in respect of anything done or purported to have been done in good faith in pursuance of the provisions of this Act and the regulation and rules made thereunder."

Bare reading of section 31 shows that the same does not oust the jurisdiction of the Civil Court generally but only bars suits against the official of the Board acting in good faith. Section 29 also does not completely oust the jurisdiction of the Civil Court preventing the Courts to examine as to whether the action taken was within the framework of the law. A factual foundation therefore, was required to be laid in order to examine whether the ouster clause would be attracted. Such foundation was only possible if objection to the jurisdiction of the Civil Court was raised in the written statement and issue framed, thereby providing opportunity to the plaintiff to furnish relevant evidence. That not done the said objection cannot be now raised for the first time. Interestingly the point was not even taken up in the petition for leave to appeal." But in the present case, objection qua jurisdiction has been raised by the **Board** at the very outset, which is a notable distinguishing feature alongwith another important aspect, which emerges with the amendment in Section 9 of **C.P.C.** as introduced through Punjab Amendment Act (XIV of 2018) dated 20th March, 2018 but before considering the impact of amendment, it would be appropriate to take note of the principles laid down in BOARD OF INTERMEDIATE AND SECONDARY EDUCATION, FAISALABAD versus MUHAMMAD WALEED (2021 MLD

123). It appears from the said case that though the amended version of Section 9 of the **C.P.C.** was in field but it was not taken into consideration at all, as such principles laid down therein would not be applicable to the case at hand.

9. As compared to the above, learned counsel for the **Board** heavily relied upon the case of GENERAL MANAGER, SNGPL, PESHAWAR versus QAMAR ZAMAN and others (2021 SCMR 2094). In the said case, the matter in issue arose from a suit for declaration instituted under the Oil and Gas Regulatory Authority Ordinance, 2002 whereunder in terms of Section 11 of the Ordinance *ibid*, a remedy of complaint was made available to interested person with the authority against the licensee for contravention of any provision of the Ordinance or of any rule or regulation. In this backdrop, the Supreme Court of Pakistan held as under:-

“7. The Ordinance being a special law explaining the powers and jurisdiction of the Authority and redressal of the disputes with overriding effect, then no other forum, Tribunal shall have the jurisdiction to step in for resolving the disputes. An overall look of the Ordinance would reflect that except the provisions of section 43, which gives the overriding effect to the Ordinance, and the provisions of sections 11 and 12 of the Ordinance, providing the procedure for resolving the disputes and appeal against the order/decision of the Authority, no other specific provision barring the jurisdiction of the Civil Court is there in the Ordinance. In the given circumstances, question would arise, as to whether a Civil Court, being a Court of plenary and ultimate jurisdiction, will have no jurisdiction to entertain the disputes referred to in the Ordinance despite the fact that there is no specific bar in the statute over the jurisdiction of the Civil Court? Answer to the above question would be a simple yes! No doubt, there is no specific bar provided in the statute over the jurisdiction of Civil Court but the above noted provisions of the Ordinance would reflect that an exclusive jurisdiction has been conferred on the Authority for determining the disputes referred to in the Ordinance which reflect the intent of the legislature. In such like situation, the jurisdiction of Authority is exclusive and the jurisdiction of Civil Court is barred but this would be an implied bar, very much permissible under the settled law and it will be equivalent to the specific bar provided in any statute.”

10. Before moving further, it would be advantageous to observe that admittedly all the suits were instituted by the **students** after the amendment in Section 9 of the **C.P.C.** whereas judgments relied

upon by learned counsel for the **students** are related to the suits which were instituted prior to the amendment. In this background, the existing shape of Section 9 would become very pivotal, which reads as under:-

“Sec. 9. Courts to try all Civil suits unless barred.—
The Courts shall (subject to the provisions herein contained) have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is either expressly or impliedly barred or for which a general or a special law is in force.”

(Underlining supplied for emphasis)

From the bare perusal of above referred provision of law, it clearly manifests that by virtue of amendment introduced through Act No.XIV of 2018 dated 20th March, 2018 to the extent of Province of Punjab, a radical and notable change was introduced by the legislature in the existing Section 9 of the **C.P.C.** and ouster clause was extended to the case for which a general or a special law is in force. This material change in Section 9 of the **C.P.C.** was undoubtedly not under consideration before the courts at the time of rendering the judgments being either not introduced at that time or not taken note of for one reason or the other. The amended version of Section 9 of **C.P.C.** for the first time came under discussion in the case of NESTLE PAK LIMITED, LAHORE through Authorized Signatory and another supra and it was held as under:-

“Even otherwise, a Court which is specialized and exclusive on a particular subject would be more equipped and focused to deal with special subject which may involve interpretation of specialized legal terms and concepts, as compared to an ordinary Court of civil jurisdiction. This stance also finds its support from the latest amendment regarding jurisdiction of civil courts in the Code of Civil Procedure, 1908 (“C.P.C.”). As per Province of Punjab Amendment brought in section 9 of C.P.C. (inserted by Punjab Act XIV of 2018, dated 20th March, 2018), the jurisdiction of Courts provided in the C.P.C. is barred where a general or special law is in force. From this perspective also, respondents cannot insist to pursue their claim before the Civil Court.”

11. Needles to mention that question of jurisdiction is always pivotal because if a court or tribunal having no jurisdiction proceed with a matter and decide it, the entire proceedings would be illegal

and *coram non judice*. It is thus obligatory for the court or tribunal to settle the question of jurisdiction at the very outset. Guidance in this respect can be sought from ZAHID ZAMAN KHAN and others versus KHAN AFSAR and others (PLD 2016 Supreme Court 409) and Messrs MUSLIM COMMERCIAL BANK LIMITED versus TAHIR EDIBLE OIL (PVT.) LTD. and others (2003 CLC 416).

12. After having threadbare discussion noted hereinabove, I feel no hesitation to observe that none of the courts have either framed proper issue to this effect or attended this pivotal question with judicious approach. I am, thus, inclined to **allow** this and all connected petitions mentioned in annexure 'A', by setting aside judgments and decrees of two courts, remand the matters to the courts of respective Senior Civil Judges (Civil Division) concerned with the direction to frame an issue to the following effect :-

Whether this court has jurisdiction to try the suit in the light of Section 9 of the Code of Civil Procedure (V of 1908) as amended by Punjab Amendment Act No.XIV of 2018 in the light of provisions contained in the Punjab Boards of Intermediate and Secondary Education Act, 1976 as well as the rules and regulations made thereunder? OP Parties.

13. Needless to observe that after framing of above issue, the court, seized with the matter, shall by treating the same as preliminary issue, proceed with the suit and decide it according to law. No order as costs.

14. Before parting, it is observed that the court entrusted with the suit shall ensure its swift and speedy decision.

(MIRZA VIQAS RAUF)
JUDGE

Dictated
03.03.2025

Signed

Announced in open Court on _____

JUDGE

APPROVED FOR REPORTING

JUDGE

“Annexure-A”

Sr. No.	Case Number	Particulars
1	Civil Revision No.971-D of 2018	Board of Intermediate and Secondary Education through its Secretary Morgah Rawalpindi versus Salma Bibi
2	Civil Revision No.194-D of 2019	Board of Intermediate and Secondary Education through its Chairman versus Bilal Ahmad
3	Civil Revision No.228-D of 2019	Board of Intermediate and Secondary Education through its Chairman etc. versus Shakeel Ali etc.
4	Civil Revision No.324-D of 2019	Board of Intermediate and Secondary Education through its Chairman versus Raja Haider Ali
5	Civil Revision No.325-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Muneeb Iftikhar
6	Civil Revision No.417-D of 2019	Muhammad Suleman versus Board of Intermediate and Secondary Education Rawalpindi through its Chairman etc.
7	Civil Revision No.497-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Faisal Iqbal
8	Civil Revision No.500-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Hina Kanwal etc.
9	Civil Revision No.501-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Attaullah
10	Civil Revision No.503-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Muhammad Rashid Imtiaz
11	Civil Revision No.584-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Sania Zahra
12	Civil Revision No.649-D of 2019	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Sohail Ahmad etc.
13	Civil Revision No.71295 of 2019	Board of Intermediate and Secondary Education Sargodha through its Chairman versus Jamila Shaheen
14	Civil Revision No.12-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Gulfranz Bibi etc.
15	Civil Revision No.23-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Nabeela Perveen
16	Civil Revision No.47-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Syed Waqas Hussain Shah etc.
17	Civil Revision No.182-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Mehwish Khan
18	Civil Revision No.29-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Maryyam Bibi
19	Civil Revision No.54-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Saghir Ahmed
20	Civil Revision No.154-D of 2020	Chairman Intermediate and Secondary Education Board, Rawalpindi etc. versus Aliya Rasheed
21	Civil Revision No.166-D of 2020	Board of Intermediate and Secondary Education through its Chairman Morgah Rawalpindi versus Ehsan Saeed
22	Civil Revision No.359-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Sadia Anwar
23	Civil Revision No.436-D of 2020	Chairman Intermediate and Secondary Education Board Rawalpindi versus Naeem Arshad etc.
24	Civil Revision No.524-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Haseeb Tariq
25	Civil Revision No.525-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Ghulam Mustafa
26	Civil Revision No.526-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Ghazanfar Abbas
27	Civil Revision No.527-D of 2020	Board of Intermediate and Secondary Education Morgah Rawalpindi through its Secretary versus Waqas Mehmood

28	Civil Revision No.72-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Asma Saleem
29	Civil Revision No.74-D of 2021	Mst. Nazia Bibi versus Chairman Rawalpindi Board of Intermediate and Secondary Education Rawalpindi etc.
30	Civil Revision No.360-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Faizan Ali
31	Civil Revision No.361-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Jalil Hussain
32	Civil Revision No.483-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through Chairman/Secretary versus Obaidullah Arshad (minor)
33	Civil Revision No.634-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through its Chairman Morgah Rawalpindi versus Usman Mumtaz
34	Civil Revision No.445-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi through Secretary versus Hamza Shehzad
35	Civil Revision No.451-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through Controller Examination versus Mst. Ruqqaya Bibi
36	Civil Revision No.457-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Hina Riaz etc.
37	Civil Revision No.486-D of 2021	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Nazma Hassan
38	Civil Revision No.579-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through its Secretary/Rawalpindi versus Zeshan Ahmed
39	Civil Revision No.658-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Saqib Ali etc.
40	Civil Revision No.701-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Muhammad Naveed Khan
41	Civil Revision No.702-D of 2021	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Muhammad Husnain
42	Civil Revision No.12-D of 2022	Chairman Board of Intermediate and Secondary Education Rawalpindi etc. versus Muhammad Zada etc.
43	Civil Revision No.50-D of 2022	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Mst. Rasheeda Begum
44	Civil Revision No.125-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman & Secretary versus Mst. Sana Tariq etc.
45	Civil Revision No.194-D of 2022	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Muhammad Muzamil Hussain
46	Civil Revision No.264-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Aiza Sahar
47	Civil Revision No.317-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Sidra Bibi etc.
48	Civil Revision No.472-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Saira Mubeen
49	Civil Revision No.538-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Shazia Batool
50	Civil Revision No.619-D of 2022	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Muhammad Sohrab
51	Civil Revision No.210-D of 2023	Chairman Board of Intermediate and Secondary Education Rawalpindi versus Dr. Awan Muhammad Awan etc.
52	Civil Revision No.216-D of 2023	Board of Intermediate and Secondary Education Rawalpindi through its Secretary versus Sabah Ali Shahid etc.
53	Civil Revision No.555-D of 2023	Board of Intermediate and Secondary Education Rawalpindi through its Secretary versus Mst. Farkhanda Jabeen etc.
54	Civil Revision No.629-D of 2023	Board of Intermediate and Secondary Education Rawalpindi through its Secretary versus Muhammad Abdullah Khan
55	Civil Revision No.699-D of 2023	Board of Intermediate & Secondary Education Rawalpindi through its Secretary/Chairman versus Shahzeen Zulfiqar etc.
56	Civil Revision No.79-D of 2024	Muniba Ejaz versus Board of Intermediate & Secondary Education (BISE) Morgah, Rawalpindi through its Secretary
57	Civil Revision No.293-D of 2024	Board of Intermediate & Secondary Education (BISE) Morgah, Rawalpindi through Chairman versus Sobia Kausar
58	Civil Revision No.539-D of	Chairman Board of Intermediate and Secondary Education

	2024	Rawalpindi versus Muhammad Arif
59	Civil Revision No.713-D of 2024	Board of Intermediate and Secondary Education Rawalpindi through its Chairman versus Shamim Akhter etc.
60	Civil Revision No.146-D of 2024	Board of Intermediate and Secondary Education through Chairman Rawalpindi versus Waqas Zafar
61	Civil Revision No.163-D of 2025	Board of Intermediate and Secondary Education through Chairman Rawalpindi versus Hareem Fatima

(MIRZA VIQAS RAUF)
JUDGE

Shahbaz Ali*